



CHAPTER lxxix.

An Act to confirm certain Provisional Orders of the Local Government Board relating to Blackpool Conway and Spalding and the Darenth Valley Main Sewerage District. A.D. 1903.
[21st July 1903.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875 :

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament and that the provisions herein contained should be enacted with reference to certain of those Orders :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall subject to the provisions of this Act have full validity and force.

Orders in
schedule
confirmed.

2. The authorities mentioned in the Orders relating to Blackpool and Spalding hereby confirmed shall not under the powers of those Orders purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

Restriction
of power to
take houses
of labouring
class.

For the purposes of this section the expression "labouring class" means mechanics artizans labourers and others working for

Ch. lxxix.] *Local Government Board's* [3 Edw. 7.]
Provisional Orders Confirmation (No. 12) Act, 1903.

A.D. 1903. wages hawkers costermongers persons not working for wages but
— working at some trade or handicraft without employing others
except members of their own family and persons other than
domestic servants whose income does not exceed an average of
thirty shillings a week and the families of any of such persons
who may be residing with them.

Short title. **3.** 'This Act may be cited as the Local Government Board's
Provisional Orders Confirmation (No. 12) Act 1903.

SCHEDULE.

A.D. 1903.

BOROUGH OF BLACKPOOL.*Provisional Order for altering certain Local Acts.**Blackpool
Order.*

To the Mayor Aldermen and Burgesses of the Borough of Blackpool;—
And to all others whom it may concern.

WHEREAS the Borough of Blackpool (herein-after referred to as “the Borough”) is an Urban District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as “the Corporation”) are the Urban District Council and as such council are the local authority within the meaning of the Public Health Act 1875;

And whereas the unrepealed provisions of the Blackpool Improvement Act 1899 and the Blackpool Improvement Act 1901 (each of which Acts is herein-after separately referred to as the Act of the year in which it was passed and both of which Acts are herein-after together referred to as “the Local Acts”) are in force in the Borough;

62 & 63 Vict.
c. clxxxiv.
1 Edw. 7.
c. cxxviii.

And whereas by Section 71 of the Act of 1901 the Corporation are empowered to contribute out of the borough fund or borough rate the whole or any part of the cost of purchasing hiring equipping and maintaining in or adjacent to the Borough any military camping or manœuvring ground and rifle range or rifle ranges which on the application of the Corporation may be approved by a Secretary of State and to lease or let the same or any part thereof for any purpose so approved and by Section 59 of that Act the Corporation are further empowered to borrow for the purposes of any such contribution as aforesaid such sum as the Local Government Board may sanction;

And whereas by Section 52 of the Act of 1899 provision was made with respect to the sale lease exchange or otherwise disposing of lands or any interest in lands acquired by the Corporation and not required for the purpose for which they were acquired;

And whereas it is expedient that further powers be conferred upon the Corporation for the purpose of enabling the Corporation themselves to purchase hire take on lease equip and maintain any such military camping or manœuvring ground and rifle range or rifle ranges as is referred to in Section 71 of the Act of 1901:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Act of 1901 shall be altered so that the following provisions shall have effect that is to say,—

88 & 89 Vict.
c. 55.

Art. I. Subject to the provisions of this Order Section 71 of the Act of 1901 shall have effect as if there were inserted in that section after the words

Authorising
Corporation to
purchase &c.

A.D. 1903. "Secretary of State" the words "or the Corporation may at the cost of the
Blackpool "borough fund and borough rate purchase hire take on lease equip and
Order. "maintain any such military camping or manœuvring ground and rifle
 military camp- "range or rifle ranges as being in or adjacent to the Borough may be
 ing grounds and rifle ranges. "approved as aforesaid".

Application of
 borrowing
 powers under
 Act of 1901.

Art. II. The purposes of this Order shall be deemed to be purposes for which under the provisions of Section 59 of the Act of 1901 the Corporation may borrow on the security of the borough fund and borough rate such sum as the Local Government Board may sanction.

Application of
 provisions of
 Acts of 1899
 and 1901 as
 to disposal of
 lands.

Art. III.—(1) The provisions of Section 52 of the Act of 1899 and Section 29 of the Act of 1901 relating to the sale lease exchange disposal appropriation or use of any lands or any interest in any lands acquired by the Corporation and not required for the purpose for which they were acquired shall apply to any lands purchased hired or taken on lease by the Corporation in pursuance of the provisions of Section 71 of the Act of 1901 as extended by this Order; and

(2) any money arising from the sale lease exchange or disposal of any such lands shall be applied towards repaying any money borrowed by the Corporation for the purchase of such lands Provided that the same shall not be applied to the payment of instalments or to payments into any sinking fund except to such extent and upon such terms as may be approved by the Local Government Board; and

(3) any money arising as aforesaid and not required for the repayment of moneys borrowed by the Corporation for the purchase of such lands shall be applied to any purpose to which capital moneys are properly applicable and which may be approved by the Local Government Board.

Application of
 certain pro-
 visions of
 Military Lands
 Acts 1892 to
 1900.

Art. IV. The provisions of Part II. of the Military Lands Act 1892 (with respect to byelaws as to land used for military purposes) and of sub-sections 2 to 5 of Section 2 of the Military Lands Act 1900 shall with the necessary modifications apply and have effect in relation to any lands purchased hired or taken on lease by the Corporation in pursuance of the provisions of Section 71 of the Act of 1901 as extended by this Order in like manner and with the like incidents and consequences as if those lands were within the meaning of the provisions hereby applied land belonging to a Secretary of State or land belonging to a volunteer corps and for the time being appropriated by or with the consent of a Secretary of State for any military purpose.

Short title.

Art. V. This Order may be cited as the Blackpool Order 1903.

Given under the Seal of Office of the Local Government Board this
 Ninth day of May One thousand nine hundred and three.

(L.S.)

WALTER H. LONG President.
 S. B. PROVIS Secretary.

BOROUGH OF CONWAY.

A.D. 1903.

*Provisional Order for altering the Conway Bridge Act 1878.**Conway
Order.*

To the Mayor Aldermen and Burgesses of the Borough of Conway ; —
And to all others whom it may concern.

WHEREAS the Borough of Conway (herein-after referred to as “the Borough”) is an Urban District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as “the Corporation”) are the Urban District Council and as such council are the local authority within the meaning of the Public Health Act 1875 and the Conway Bridge Act 1878 (herein-after referred to as “the Local Act”) is in force in the Borough ;

41 Vict.
c. lxxviii.

And whereas by Section 4 of the Local Act the members of the Corporation were appointed Commissioners for the purposes of that Act ;

And whereas by the Local Act provision was made for the maintenance and repair of the bridge over the River Conway as in that Act defined and the bridge as so defined is herein-after referred to as “the bridge” ;

And whereas by the Schedule to the Local Act (which specifies the tolls payable in respect of the bridge) it is provided that the Corporation as such Commissioners as aforesaid shall be at liberty to refuse the passage over the bridge to any engine carriage or other vehicle propelled or moved by steam or machinery or otherwise than by animal power if they consider that the structure of the bridge would be thereby endangered and it is also provided that no engine carriage waggon or other vehicle weighing when loaded or unloaded more than ten tons shall be allowed to pass over the bridge ;

And whereas it is expedient that the above-mentioned provisions (herein-after referred to as “the scheduled provisions”) be made applicable at all times whether tolls be or be not taken in respect of the bridge and for the protection of the public as well as for preventing danger to or injury of any part of the bridge and the present state of the bridge renders it necessary or expedient for the protection of the public and for preventing danger to or injury of the bridge that the Corporation be further empowered to regulate the use of the bridge for vehicular traffic :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so as to provide as follows that is to say,—

38 & 39 Vict.
c. 55.

Art. I.—(1) The scheduled provisions shall apply and have effect at all times whether tolls be or be not taken in respect of the bridge and the powers conferred upon the Corporation by the scheduled provisions as hereby applied may be exercised as well for the protection of the public using the bridge as for preventing danger to or injury of the bridge.

Application of
scheduled
provisions.

(2) The Corporation for the purposes aforesaid may further regulate the use of the bridge by engines carriages and other vehicles of all kinds and may

Regulation of
traffic by rules.

A.D. 1903. subject to the provisions of this Order make and enforce rules for the regulation of vehicular traffic on or over the bridge.

*Conway
Order.*

Subject-matter
of rules.

(3) The Corporation by any such rules may prescribe—

- (a) the speed at which any engine carriage or other vehicle may be taken upon or may pass on or over the bridge ;
- (b) the number of engines carriages or other vehicles which may at any one time be allowed to be upon or to be taken upon or to pass on or over the bridge ;
- (c) the weight including the weight of any vehicle and the loading thereof which may be allowed to be taken upon or to pass on or over the bridge and the total weight as aforesaid which at any one time may be allowed to be upon the bridge ;
- (d) the width of the wheels of any vehicle which may be allowed to be taken upon or to pass on or over the bridge ; and
- (e) the precautions to be observed by the persons in charge of or driving or in attendance upon any vehicles using the bridge.

Publication of
rules.

(4) Subject to the provisions of this subdivision the Corporation shall publish the rules made in pursuance of this Article by advertisement in some local newspaper circulating in the County of Carnarvon and shall cause printed copies of the rules in force for the time being to be affixed and continued on notice boards in a conspicuous position outside the town hall at Conway and at each end of the bridge and shall supply a copy of rules in force for the time being to any person applying for the same :

Provided that the foregoing requirements so far as regards the advertisement and supply of copies of the rules shall not apply in any case where the Corporation in any rules expressly declare that the case to which those rules apply is one of emergency and expressly limit the application of the rules to a period not exceeding one week.

Penalty for
contravention
of scheduled
provisions.

Art. II. If a person acts in contravention of the scheduled provisions as applied by this Order or acts in contravention of or fails to comply with any direction of the Corporation in pursuance of the scheduled provisions or acts in contravention of or fails to comply with any rule made in pursuance of this Order he shall be liable for each offence on conviction under the Summary Jurisdiction Acts to a fine not exceeding five pounds but a summary conviction for any such offence shall be subject to an appeal to a court of quarter sessions.

Saving for
other parlia-
mentary
powers.

Art. III. Nothing in this Order or in the scheduled provisions as applied by this Order or in any rules to be made in pursuance of this Order shall be in derogation of any other powers conferred by Act of Parliament for the prohibition or restriction of the use of the bridge by any vehicle.

Short title.

Art. IV. This Order may be cited as the Conway Order 1903.

Given under the Seal of Office of the Local Government Board this
Ninth day of May One thousand nine hundred and three.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

URBAN DISTRICT OF SPALDING.

A.D. 1903.

*Provisional Order for altering a Local Act.**Spalding
Order.*

To the Urban District Council of Spalding ; —

And to all others whom it may concern.

WHEREAS the Urban District Council of Spalding (herein-after referred to as “the Council”) are the Urban Authority within the meaning of the Public Health Act 1875 for the Urban District of Spalding (herein-after referred to as “the district”) and the unrepealed provisions of the Spalding Improvement Act 1853 (herein-after referred to as “the Local Act”) are in force in the district ;

16 & 17 Vict.
c. cxxxix.

And whereas under and by virtue of the Local Act the Spalding Improvement Commissioners who were the predecessors of the Council provided gasworks on the lands mentioned in the schedule hereto and the Council now manufacture and supply gas and carry on a gas undertaking and the Council have applied to the Local Government Board to issue a Provisional Order to alter the Local Act so as to extend their powers for the purposes of their gas undertaking and to enable them to borrow moneys for those purposes ;

And whereas the said Commissioners in pursuance of and for the purposes of the Allotments Act 1887 purchased certain land situate in the Parish of Spalding and a portion of the land so purchased being also part of the lands described in the schedule to this Order has been used by the Council for the purposes of their gas undertaking and it is expedient that the Council should be authorised to appropriate for the purposes of the said undertaking so much of the lands so purchased as is included in the lands described in the schedule to this Order :

50 & 51 Vict.
c. 48.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall take effect viz.,—

38 & 39 Vict.
c. 55.

Art. I. Section 85 of the Local Act shall be repealed.

Repeal of Section
85 of Local Act.
Interpretation.

Art. II.—(1) Subject to the provisions of this Order the several words and expressions to which by the Acts in whole or in part incorporated with the Local Act by Section 38 of that Act and by this Order meanings are assigned have in this Order the same respective meanings (unless there be something in the subject-matter or context repugnant to that construction).

(2) The expression “residual products” includes coke culm asphaltum pitch tar oil ammoniacal liquor or any other refuse or residual matter or thing produced in or resulting from the manufacture of gas :

The expression “gasworks” includes any building structure machinery apparatus or work constructed or provided for use in or for the purposes of any process or operation connected with the manufacture or storage of gas

A.D. 1903.

*Spalding
Order.*

or the manufacture conversion preparation or storage of any residual products or otherwise for any purpose of the gas undertaking or of any powers or duties of the Council under this Order or under any enactment incorporated with and applied by this Order :

The expression "gas fittings" includes any meter engine oven stove range pipe or burner or any other apparatus appliance article or thing used or intended or adapted to be used in or in connexion with the supply or consumption of gas for the purposes of lighting motive power heating and cooking or for any other purpose for which gas can or may be used.

Incorporation
of Acts.

Art. III.—(1) The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking and except Section 127 of the Lands Clauses Consolidation Act 1845) and the provisions of the Gasworks Clauses Act 1871 (except Sections 8 24 to 27 Sections 29 and 35 and Schedule B thereof) shall for the purposes of this Order be incorporated with the Local Act and the said provisions of the Gasworks Clauses Act 1871 as so incorporated and the provisions of the Gasworks Clauses Act 1847 which are incorporated with the Local Act by Section 38 thereof shall have effect subject to the provisions of this Order and shall apply to any gasworks acquired by or vested in the Council under or by virtue of the Local Act and to any gasworks constructed or provided under the authority of this Order.

(2) Notwithstanding anything in Section 35 of the Local Act the Council may purchase by agreement and subject to the provisions of this Order any land not exceeding three acres in addition to the lands described in the schedule hereto.

(3) The Council may appropriate for the purposes of their gas undertaking those portions of the lands described in the schedule hereto which were acquired under and for the purposes of the Allotments Act 1887 but the Council shall pay out of the revenue arising from their gas undertaking the sum of seventy-five pounds as consideration for such appropriation and shall apply the said sum in manner provided by Section 11 (2) of the Allotments Act 1887 as if it were the proceeds of a sale under that section.

Construction
of works &c.

Art. IV.—(1) The Council may maintain repair renew and continue and from time to time construct extend enlarge and alter any gasworks upon the lands described in the schedule to this Order.

(2) Subject to the provisions of this Order the Council may manufacture supply and sell gas within the district for public and private purposes and may manufacture convert or prepare and sell any residual products.

Council not to
manufacture
gas or residual
products ex-
cept on sche-
duled land.

Art. V.—(1) The Council shall not manufacture gas nor manufacture convert or prepare any residual products on any lands other than the lands described in the schedule to this Order.

(2) The Council shall not store gas or any residual products on any lands (other than the lands described as aforesaid) which shall be situated within

three hundred yards of any dwelling-house without the previous consent in writing of the owner lessee and occupier of such dwelling-house. A.D. 1903.

*Spalding
Order.*

Art. VI. The Council may purchase or hire and sell or let on hire supply and otherwise deal in and fix set up alter remove and re-fix but shall not manufacture any gas fittings and may require and take such remuneration in money or such rents and charges for and make such terms and conditions with respect to the sale letting supply fixing setting up altering removing or re-fixing of such gas fittings and for securing their safety and (if the circumstances so require) their return to the Council as may be agreed upon between the Council and the person to or for whom the said gas fittings are sold let supplied fixed set up altered removed or re-fixed. Supply of fittings.

Art. VII. The Council may from time to time enter into and carry into effect and alter or rescind contracts and agreements with respect to the supply of gas in bulk beyond the district to any other authority or company authorised to supply gas upon such terms and conditions as may from time to time be agreed upon and may exercise for that purpose the powers of the Gasworks Clauses Act 1847 with respect to the breaking up of streets: Supply of gas in bulk without the district.

Provided that nothing herein contained shall be construed as conferring any powers on the Council in relation to the laying down or placing of any pipe or the breaking up of any road or street or the execution of any work beyond the limits of the district without the consent of the authority in whose district such works are proposed to be laid down or placed or in which any road or street is proposed to be so broken up.

Art. VIII. The quality of the gas supplied by the Council shall with respect to its illuminating power be such as to produce at the testing place herein-after mentioned a light equal in intensity to the light produced by fifteen sperm candles of six to the pound and shall in all respects be in accordance with the provisions of the Gasworks Clauses Act 1871. Quality of gas.

Art. IX. The Council shall within three months after the date of the Act of Parliament confirming this Order provide and maintain on the lands described in the schedule to this Order a suitable photometer and other necessary appliances for the purpose of testing the quality of the gas and shall at all times keep the same in proper order and repair. Photometer to be provided.

Art. X. All gas supplied by the Council to any consumer of gas shall be supplied at such pressure as to balance from midnight to sunset a column of water not less than six-tenths of an inch in height and from sunset to midnight a column of water not less than eight-tenths of an inch in height at the main or as near as may be to the junction therewith of the service pipe supplying such consumer. Pressure.

Art. XI.—(1) For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be the testing place to be provided by the Council as aforesaid and the burner to be used for testing the gas shall be Testing place and burner.

A.D. 1903.

*Spalding
Order.*

either a Sugg's London Argand No. 1 with a six-inch by one-and-three-quarter-inch glass chimney (and if at any time the gas flame tails over the top of the glass a six-inch by two-inch chimney shall be used) or such other burner as the Board of Trade may approve.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 for the purposes of this Order may from time to time subject to the terms of his appointment at such testing place or elsewhere not being the immediate approach to any railway bridge or railway station as and when he thinks fit test the pressure at which the gas is supplied and for that purpose may open any street road passage or place vested in or under the control of any local or road authority and two hours' previous notice shall be given to the Council of the time and place at which any testing for pressure elsewhere than at the testing place will be conducted.

No penalty
in case of
unavoidable
cause.

Art. XII. No penalty shall be incurred by the Council for insufficiency of pressure defect of illuminating power or for excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by an unavoidable cause or accident.

Maximum
price.

Art. XIII. The proviso to Section 38 of the Local Act shall be repealed and the price to be charged by the Council for gas supplied by them to consumers shall not exceed five shillings and sixpence per one thousand cubic feet and so in proportion for any less quantity supplied. Provided nevertheless that every odd fraction or portion of one hundred cubic feet may be charged for as one hundred cubic feet.

Borrowing
powers.

Art. XIV. The Council may with the sanction of the Local Government Board subject to the provisions and for the purposes of this Order borrow a sum not exceeding in the whole the sum of thirteen thousand pounds upon the security of the moneys from time to time received by them by way of revenue from their gas undertaking and upon the security of the gas rate levied in pursuance of Section 34 of the Local Act.

Local Loans
Act and certain
provisions of
Public Health
Act made
applicable.

Art. XV. For the purpose of raising money in the exercise of the powers of borrowing or of re-borrowing conferred by this Order the provisions of the Local Loans Act 1875 shall be available to the Council and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed or re-borrowed on mortgage under this Order.

Period for
repayment of
borrowed
money.

Art. XVI. The moneys borrowed under this Order shall be repaid within such period not exceeding fifty years from the date of borrowing as the Council with the sanction of the Local Government Board in each case determine and the period so determined and sanctioned is herein-after referred to as "the prescribed period" and shall with reference to the moneys to be repaid be the prescribed period for the purposes of this Order and of the Local Loans Act 1875.

Mode of
repayment.

Art. XVII.—(1) The Council shall repay the moneys borrowed under this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual

instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

A.D. 1903.

—
*Spalding
Order.*

(2) Subject to the provisions of Article XVIII. of this Order if the Council determine to repay by means of a sinking fund any moneys borrowed under this Order such sinking fund shall be formed and maintained either—

Formation
maintenance
and applica-
tion of sinking
funds.

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called a non-accumulating sinking fund; or

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is herein-after called an accumulating sinking fund.

(3) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Council the Council being at liberty from time to time to vary and transpose such investments.

(4) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(5) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(6)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Council :

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the

A.D. 1903. same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards such equal annual payments.

*Spalding
Order.*

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Council in addition to the payments provided for by this Order.

Increase
reduction or
discontinuance
of payments to
sinking fund.

Art. XVIII.—(1) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct.

(2) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3) If in the opinion of the Local Government Board the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Board approve.

(4) If in the opinion of the Local Government Board the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay the loan in respect of which it is formed within the prescribed period the Council may with the consent of the Board discontinue the equal annual payments to such sinking fund until the Board otherwise direct.

Surplus of
sinking fund.

(5) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Council with the consent of the Local Government Board may determine.

Power to
re-borrow.

Art. XIX. The Council shall except as herein-after provided have power to re-borrow for the purpose of paying off any moneys borrowed or re-borrowed under this Order which have not been repaid and are intended to be forthwith repaid or in respect of any moneys which have been repaid by the temporary application of funds at the disposal of the Council within twelve months before the re-borrowing and which at the time of the repayment it was intended to re-borrow :

Provided that the Council shall not have power to re-borrow for the purpose of paying off any moneys repaid by instalments or annual payments

or by means of a sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of such repayment other than moneys borrowed for that purpose :

A.D. 1903.

*Spalding
Order.*

Provided also that any moneys re-borrowed shall be deemed to form the same loan as the moneys for the repayment of which the re-borrowing has been made and shall be repaid within the prescribed period.

Art. XX. All moneys from time to time borrowed or re-borrowed under this Order shall be applied by the Council only for the purposes for which the same are respectively authorised to be borrowed or re-borrowed excepting that moneys which may have been borrowed or re-borrowed in excess of the amount required shall be applied in such manner as the Council with the approval of the Local Government Board determine and all money received by the Council under this Order either as purchase money of lands sold or for equality of exchange or as consideration for a lease shall be applied to works or objects on which capital may properly be expended when the Local Government Board have sanctioned the application of the same to those purposes or shall be applied according as the Council may determine towards the reduction of the debt owing by the Council or towards the increase of the sinking fund set apart under this Order. Provided that it shall not be in any way incumbent on any mortgagee to see to the application of any moneys so borrowed or re-borrowed nor shall the mortgagee be responsible for any misapplication thereof.

Application
of borrowed
moneys.

Art. XXI.—(1) Subject to the provisions of this Article any mortgagee of the Council in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver.

Receiver.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him :

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to such applicants collectively be not less than five hundred pounds in the whole.

Art. XXII.—(1) The clerk to the Council shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Order or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may from time to time be prescribed by the Board and if required by the Board verified by statutory declaration of such clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts

Return as to
provision for
repayment
of debt.

A.D. 1903.

*Spalding
Order.*

which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the said clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Order or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than an authorised purpose the Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

Application of
gas revenue.

Art. XXIII. All moneys from time to time received by the Council by way of revenue under this Order shall be applied for the following purposes:—

In payment of the gas establishment charges (that is to say) of the expenses properly chargeable to revenue of continuing conducting managing and maintaining the gasworks and the gas undertaking of the Council;

In payment of the interest on the moneys borrowed or re-borrowed for the purposes of this Order;

In providing for the discharge of any moneys borrowed or re-borrowed for the purposes of this Order in accordance with the provisions of this Order or if such money was borrowed thereunder of the Local Loans Act 1875;

In setting apart if the Council think fit a yearly sum not exceeding ten pounds per centum of such revenue for the purpose of forming a reserve fund to provide for the expenses attendant upon or occasioned by any sudden accident to the gasworks or any other extraordinary expenditure authorised by this Order Provided that such reserve fund shall be accumulated by way of compound interest by investment in the manner specified in subdivision (3) of Article XVII. of this Order

as to the sinking fund until it amounts according to the market price of such investments to the sum of five hundred pounds and that whenever the reserve fund amounts according to the market price of such investments to the sum of five hundred pounds the income therefrom shall be applied in the same manner as money received by the Council by way of revenue under this Order;

A.D. 1903.

*Spalding
Order.*

In payment if the Council think fit of the expenses of executing any permanent works authorised by this Order;

The residue (if any) of such revenue shall be applied first in reduction of the gas rate levied under the Local Act and secondly shall be carried to the credit of the improvement rate levied under that Act but no part of such revenue shall be carried to the credit of the improvement rate when the price of gas to private consumers exceeds three shillings and fourpence per one thousand cubic feet.

Art. XXIV. All costs charges and expenses of and incidental to the preparation and obtaining of this Order shall be paid by the Council out of the revenue of their gas undertaking or out of the gas rate.

Charges of
carrying Order
into execution.

Art. XXV. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of this Order or of the Local Act the costs incurred by the Board in relation to such inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in such inquiry) shall be paid by the Council and the Board may certify the amount of the costs so incurred and any sum so certified and directed by the Board to be paid by the Council shall be a debt due to the Crown from the Council.

Inquiries and
expenses.

Art. XXVI. This Order may be cited as the Spalding Gas Order 1903.

Short title.

The SCHEDULE above referred to.

All those pieces or parcels of land now occupied as the site of the gasworks of the Council together with the manager's residence and offices erected thereon with yard adjoining and the buildings gasworks and sheds erected thereon or on some part thereof and the appurtenances belonging thereto situate in Albion Street or Marsh Road in the Parish of Spalding bounded by the public highway next the River Welland towards the east by property belonging or reputed to belong to Arthur Edward Seawell in part and by land acquired by the Council under the Allotments Act 1887 in other part towards the south by the land so acquired under the Allotments Act 1887 towards the west and by property belonging or reputed to belong to George Hilton Walton towards the north.

Given under the Séal of Office of the Local Government Board this
Eighth day of May One thousand nine hundred and three.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

A.D. 1903.

DARENTH VALLEY MAIN SEWERAGE DISTRICT.

*Darenth
Valley
Order.**Provisional Order for altering certain Confirming Acts.*

To the Darenth Valley Main Sewerage Board ; —

To the Urban District Council of Sevenoaks ; —

To the Rural District Council of Dartford ; —

To the Rural District Council of Sevenoaks ; —

And to all others whom it may concern.

WHEREAS by virtue of—

41 & 42 Vict.
c. cexi.

(a) The Darenth Valley Main Sewerage Order 1878 which was confirmed by the Local Government Board's Provisional Order Confirmation (Darenth Valley) Act 1878 (which Act is herein-after referred to as "the Confirming Act of 1878") ;

42 & 43 Vict.
c. ciii.

(b) Section 2 of the Confirming Act of 1878 ;

(c) The Darenth Valley Main Sewerage Order 1879 which was confirmed by the Local Government Board's Provisional Orders Confirmation (Abergavenny Union &c.) Act 1879 ;

51 & 52 Vict.
c. ci.

(d) The Darenth Valley Main Sewerage Order 1888 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 6) Act 1888 ; and

59 & 60 Vict.
c. cvii.

(e) The Darenth Valley Main Sewerage Order 1896 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 12) Act 1896 ;

(all which Provisional Orders and Confirmation Acts are herein-after referred to collectively as "the Orders" and "the Confirming Acts") the Urban District of Sevenoaks so much of the Rural District of Dartford as comprises the contributory places of Farningham Horton Kirby Sutton-at-Hone and Wilmington and those portions of other contributory places in the said Rural District which are described in Section 2 of the Confirming Act of 1878 and so much of the Rural District of Sevenoaks (herein-after referred to as "the Sevenoaks area") as comprises the contributory place of Otford and those portions of other contributory places in the said Rural District which are described in Section 2 of the Confirming Act of 1878 constitute the United District called the Darenth Valley Main Sewerage District (herein-after referred to as "the United District") of which the governing body is the Darenth Valley Main Sewerage Board (herein-after referred to as "the Joint Board") ;

And whereas by virtue of the Orders the Joint Board consists of ex-officio and elective members representing the several District Councils mentioned in column 2 of the Schedules hereto and herein-after referred to as "the Constituent Authorities" ;

And whereas it is expedient that so much of the Rural District of Sevenoaks as comprises the contributory place of Kemsing should be included in the United District :

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 297 of the Public Health Act 1875 and by

any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Confirming Acts so far as they relate to the Orders shall be altered so that the following provisions shall apply and have effect that is to say,—

A.D. 1903.

—
Darenth
Valley
Order.

Art. I. The United District shall be extended so as to include the contributory place of Kemsing in the Rural District of Sevenoaks and subject to the provisions of this Order references in the Orders to the Constituent Districts shall be deemed to include the Sevenoaks area as enlarged by the addition of the said contributory place.

Extension of
United District.

Art. II. The Orders shall have effect as if Schedules A and B to this Order were substituted for the Schedules A and B to the Darenth Valley Main Sewerage Order 1896.

Schedules.

Art. III.—(1) The Rural District Council of Sevenoaks shall pay to the Joint Board on behalf of the contributory place of Kemsing as a contribution on its inclusion in the United District towards the costs incurred by the Joint Board in the construction of the existing main sewer or main sewers of the Joint Board such sum including for the purposes of subdivision (3) of this Article interest at such rate as shall be agreed upon between the Constituent Authorities and the Joint Board or as in default of agreement shall be determined by the Local Government Board.

Contribution of
Rural District
Council of
Sevenoaks on
behalf of the
contributory
place of Kem-
sing towards
costs of con-
struction of
existing main
sewerage
works.

(2) It shall be at the option of the Local Government Board to determine any matter arising under subdivision (1) of this Article as arbitrators or otherwise and if they elect to determine the matter as arbitrators the provisions of the Regulation of Railways Act 1868 respecting arbitrations by the Board of Trade and the enactments amending those provisions shall apply as if they were herein re-enacted and in terms made applicable to the Local Government Board and to the determination of matters under this Order.

(3) The sum agreed or determined to be payable in pursuance of subdivision (1) of this Article shall be paid by the said Rural District Council by fifty equal half-yearly instalments and the first of those instalments shall be paid at the expiration of one month from the date of the said agreement or determination and each subsequent instalment together with interest on the balance at the time being unpaid shall be paid at the expiration of each subsequent period of six months until the whole of the sum has been discharged.

(4) The payments to be made by the said Rural District Council under subdivision (1) of this Article shall be deemed to be special expenses within the meaning of the Public Health Act 1875 chargeable upon the said contributory place of Kemsing.

(5) The Joint Board shall apply the sums received from the said Rural District Council in respect of principal in pursuance of subdivision (1) of this Article in payment or in part payment of the half-yearly instalments of principal payable by the Joint Board in respect of any loan raised by them for the purpose of defraying the costs of the construction of their existing main sewer or main sewers.

[Ch. lxxix.] *Local Government Board's* [3 Edw. 7.]
Provisional Orders Confirmation (No. 12) Act, 1903.

A.D. 1903.
 ———
*Darenth
 Valley
 Order.*
 Adjustment.

Art. IV. Subject to the provisions of this Order the Local Government Board upon the application of any of the Constituent Authorities or of the Joint Board may by order adjust as between the Constituent Authorities or as between the Constituent Authorities and the Joint Board any expense or liability incurred by or attaching to the Joint Board before the date of the Act of Parliament confirming this Order or any expense liability or accounts arising out of incidental to connected with or affected by the inclusion of the said contributory place of Kensing in the United District or any expense liability or accounts in respect of which doubt or difference may arise after the date of the said Act and the Local Government Board may in such order deal with any matters which may be dealt with by an order or Provisional Order made under Section 304 of the Public Health Act 1875.

Inquiries and
 Expenses.

Art. V. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of this Order the costs incurred by the Board in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in the inquiry) shall be paid by the Joint Board or by any of the Constituent Authorities or by the Joint Board and the Constituent Authorities or any of them in such proportions as the Board may in each case direct and the Board may certify the amount of the costs so incurred and any sum so certified and directed by the Board to be paid by the Joint Board or any Constituent Authority shall be a debt due to the Crown from the Joint Board or the Constituent Authority.

Short titles.

Art. VI. This Order may be cited as the Darenth Valley Main Sewerage Order 1903 and the Orders and this Order may be cited together as the Darenth Valley Main Sewerage Orders 1878 to 1903.

The SCHEDULES above referred to.

SCHEDULE A.

1.	2.	3.	4.	
Name of District.	Name of District Council.	Ex-officio Member.		Elective Members.
		Number.	Description.	Number.
The Urban District of Sevenoaks.	The Urban District Council of Sevenoaks.	1	The Chairman of the Urban District Council or in the event of his being unwilling to act or being either of the ex-officio members described in Schedule B then the Vice-Chairman of the Urban District Council.	5

[3 EDW. 7.] *Local Government Board's* [Ch. lxxix.]
Provisional Orders Confirmation (No. 12) Act, 1903.

SCHEDULE B.

A.D. 1903.

*Darenth
Valley
Order.*

1.	2.	3.		4.
Name of District.	Name of District Council.	Ex-officio Members.		Elective Members.
		Number.	Description.	Number.
The Rural District of Dartford— The contributory places of Farningham Horton Kirby Sutton-at-Hone and Wilmington and the part of the Rural District which is included in the United District by Section 2 of the Confirming Act of 1878.	The Rural District Council of Dartford.	1	The Chairman of the Rural District Council or in the event of his being unwilling to act or being the ex-officio member described in Schedule A then the Vice-Chairman of the Rural District Council.	7
The Rural District of Seven-oaks— The contributory places of Kemsing and Otford and the part of the Rural District which is included in the United District by Section 2 of the Confirming Act of 1878.	The Rural District Council of Seven-oaks.	1	The Chairman of the Rural District Council or in the event of his being unwilling to act or being the ex-officio member described in Schedule A then the Vice-Chairman of the Rural District Council.	6

Given under the Seal of Office of the Local Government Board this
Ninth day of May One thousand nine hundred and three.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

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